

WHY THE SUPREME COURT FIXED A TIMELINE

THE LAW

↘ All bills—except a money bill—require the assent of the governor to become law

↘ Under Article 200 of the Constitution, a governor can exercise any of the four alternatives—to give assent, withhold it, return the bill to the assembly for reconsideration, or reserve it for the consideration of the President

THE PROBLEM

↘ Since no timeline is prescribed for governors to decide on a bill, Raj Bhavans exploit this ambiguity to sit on bills indefinitely

THE REMEDY

↘ SC has now ruled that governors cannot wield a veto or a pocket veto over the passed bills

↘ They cannot first return a bill to the assembly and then refer it to the President, it must be one or the other; referral is allowed only under clearly defined circumstances

↘ The President, too, cannot withhold assent arbitrarily; a constitutionally valid reason is a must. Bills can also not be withheld for more than three months